

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Submission-on-Briefs Order

Entered May 18, 2026

Upon review of the briefs, joint appendix, and the parties' filings concerning expedition, the panel unanimously concludes that oral argument would not materially aid the decisional process. The appeal is submitted on the briefs and record as of May 18, 2026, under Federal Rule of Appellate Procedure 34(a)(2) and the Court's authority to manage its calendar.

The submissions adequately present the questions arising from the January 23 preliminary injunction: interlocutory jurisdiction under 28 U.S.C. § 1292(a)(1), whether passage of an identified event date affects a controversy involving the same recurring organizer and operative permit rule, whether the Guild established the four requirements for preliminary relief, and the City's separate objections under Federal Rule of Civil Procedure 65(c) and 65(d).

Submission without argument does not signal a disposition. The panel has not adopted either party's account of narrow tailoring, the evidentiary significance of prior event administration, the effect of the fee schedule, or the appropriate remedy. The appeal will be decided from the district record and the briefing properly before the Court.

No additional merits paper may be filed without leave. A party shall promptly notify the Clerk of a material development bearing on jurisdiction, mootness, or the operative injunction. Such a notice must identify the development concisely and may not be used to supplement argument.

Record and Continuing Obligations

The district record is complete, and the joint appendix contains the materials designated for review. The Court will not treat assertions outside that record as adjudicated facts merely because they appear in advocacy. The parties' legal positions concerning the ordinance, recurring events, preliminary entitlement, and Rule 65 relief are preserved without further filing.

The January 23 injunction remains subject to the orders presently governing it unless and until judgment or another specific order changes that status. Submission does not stay, dissolve, enlarge, or clarify the injunction. The City and persons bound by the order remain responsible for compliance, and the Guild remains responsible for supplying the neutral logistical information and updates it has undertaken to provide.

The panel may issue an opinion and judgment when its review is complete. Counsel need not appear and should not contact chambers concerning timing. The Clerk will provide electronic notice when a decision enters and will calculate any dependent deadlines from the event and governing rules then applicable.

Any motion based on a genuinely new jurisdictional fact must state the date learned, include necessary support, and address the position of opposing counsel. Routine changes to author rosters, ordinary permit communications, or scheduling matters should remain with the parties and the district court unless they materially affect appellate jurisdiction.

Entered at the direction of the unanimous panel on May 18, 2026. The Clerk shall remove the appeal from the oral-argument calendar, mark it submitted on the briefs, and notify counsel promptly.